

CODE OF BALTIMORE REGULATIONS ANNOTATED (COBRA) REGISTER



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Pursuant to General Provisions Article, § 4-303 of the Baltimore City Code, this issue contains all documents required to be published for this issue date.

Information about the COBRA Register and COBRA

COBRA REGISTER

The COBRA register is an official City publication. The COBRA register acts as a temporary supplement to the Code of Baltimore Regulations Annotated. Any change to the text of regulations published in COBRA must first be published in the COBRA Register.

CODE OF BALTIMORE REGULATIONS ANNOTATED (COBRA)

COBRA is the official compilation of all regulations issued by agencies of the City of Baltimore. The COBRA Register serves as COBRA's temporary supplement, publishing all proposed changes to regulations.

INCORPORATION BY REFERENCE

Incorporation by reference is a legal device by which a document is made part of COBRA by formal reference. The text of the incorporated document will not appear in COBRA, but the provisions of the incorporated document are enforceable as a COBRA regulation. Documents incorporated by reference will appear in the COBRA Register with a notice designating it as a document incorporated by reference.

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Baltimore City residents may participate in the process by which City regulations are proposed, adopted, amended, or repealed by submitting data or opinions on proposed regulations to the promulgating agency (see "Opportunity for Public Comment" section on the notice page for all proposed regulations contained in the COBRA Register).

ISSUE AND DEADLINE DATES THROUGH DECEMBER 2026[†]

ISSUE DATE	*DEADLINE FOR PROPOSED REGULATION
January 15, 2026	January 8, 2026
**February 15, 2026	**February 8, 2026
**March 15, 2026	**March 8, 2026
April 15, 2026	April 8, 2026
May 15, 2026	May 8, 2026
June 15, 2026	June 8, 2026
July 15, 2026	July 8, 2026
**August 15, 2026	**August 8, 2026
September 15, 2026	September 8, 2026
October 15, 2026	October 8, 2026
**November 15, 2026	**November 8, 2026
December 15, 2026	December 8, 2026

[†] Please note that this table is provided for planning purposes only. The Department of Legislative Reference (DLR) cannot guarantee that submissions will be published by an agency's desired publication date. Circumstances related to workload and staffing may prevent adherence to this schedule.

* Please note that the deadlines provided for the submission of a proposed regulation indicates the submission of a regulation in its final form for publication, including all required revisions from DLR and approvals from DLR, the Department of Law, and the Office of the City Administrator. DLR advises a 10-week lead time for this process.

**For dates when the submission of a proposed regulation to DLR would fall over a weekend, the proposed regulation will be due the Friday prior; for dates when the submission of a proposed regulation to DLR would fall on a Federal holiday, the proposed regulation will be due the business day prior.

INDEX OF COBRA TITLES AFFECTED IN THIS ISSUE

COBRA Title Number and Name

Title 14 – Department of Transportation

NOTICES OF FINAL ACTION IN THIS ISSUE

There are no notices of final action published in this issue.

FOR REGULATIONS PROPOSED FOR AMENDMENT THIS REGISTER

[Bracketed] text indicates an item stricken from the regulation

Italic text indicates an item added to the regulation

COBRA Register. Publication of the Department of Legislative Reference, 100 Holliday Street, Suite 626, Baltimore, MD, 21201. Tel. 410-396-4730. **Brandon Scott**, Mayor; **Benjamin Guthorn**, Director, Department of Legislative Reference; **Hanna Navarrete Naugle**, City Regulations Lead; **Katie Gawin**, Legislative Services Technician.

TITLE 14

DEPARTMENT OF TRANSPORTATION

Subtitle 03 RIGHT-OF-WAY

14.03.01 STREET CUTS

Authority: City Code Article 26, Subtitle 15

Notice of Proposed Action

The Director of Transportation proposes to amend Regulation **.01 STREET CUTS** under **COBRA 14.03**.

Statement of Purpose

The purpose of this action is to:

- (1) Update the chapter definitions to be compliant with the City Administrative Procedure Act;
- (2) Define the term “crosswalk”; and
- (3) Establish requirements for the restoration of crosswalks following street cut work in a right-of-way.

Changes to this chapter were requested by members of the Baltimore City Council and initiated by the Department in accordance with City Code Article 26, §15-5

Opportunity for Public Comment

Comments may be sent to Luciano Diaz, Deputy Chief of Government Affairs, Department of Transportation, 417 E Fayette Street (5th Floor), or emailed to Luciano.Diaz@BaltimoreCity.gov within 30 days of the date of publication of this Register.

VERONICA P. MCBETH
DIRECTOR, DEPARTMENT OF TRANSPORTATION

TITLE 14 DEPARTMENT OF TRANSPORTATION
SUBTITLE 03 RIGHT-OF-WAY
CHAPTER 01 STREET CUTS

Authority: City Code Article 26, Subtitle 15

14.03.01

.01 Adoption, Applicability, and Scope.

A. – C. *(text unchanged)*

.02 Definitions.

A. *(text unchanged)*

B. Terms Defined.

[(1) “ADA” means the federal Americans with Disabilities Act.

(2) “Bicycle Facility or bike facility” means infrastructure and provisions to accommodate or encourage bicycling including

(a) bike lanes,

(b) parking and storage facilities, and

(c) shared roadways specifically designated for bicycle use.

(3) “Blanket permit” means an authorization that allows an applicant under certain conditions

(a) to take certain actions at a specific location,

(b) without first applying for a Street-cuts permit for that specific location.

(4) “Decorative Surfaces” means any decorative surface including:

(a) dedicated bus lane red pavement markings,

(b) bike lane green pavement markings,

(c) cobblestone or granite pavement,

- (d) brick or concrete pavers,
- (e) granite curbs,
- (f) brick gutters,
- (g) stamped concrete and asphalt pavement, and
- (h) graphics or other designated colored pavement surface.

(5) “Demarcation materials” means warning surface treatments for the affected roadway, including flex posts, monolithic curbs, vertical barriers.

(6) “Department” or “DOT” means The Department of Transportation.

(7) “Directional drilling” means a trenchless method of installing underground conduit and utilities with minimal impact

- (a) in a relatively shallow arc
- (b) along a prescribed underground path.

(8) “Director” means The Director of Transportation or the Director’s designee.

(9) “Duration” means the time during which an activity required by the street cut work continues.

(10) “Emergency” means a situation where an excavation is needed, as a result of an unforeseen event, to prevent or abate an imminent potential danger to life, health, or property.

(11) “Excavation” means any work for or in connection with the installation, improvement, maintenance, or repair of any facilities that:

- (a) involves the displacement or removal of materials; and
- (b) is performed in or below the surface of a public way.

(12) “Facilities” means any equipment or other property that is located or proposed to be in a public way including

- (a) access holes,

- (b) cables,
- (c) cabinets,
- (d) ducts,
- (e) conduits,
- (f) converters,
- (g) drains,
- (h) handholds,
- (i) pipes,
- (j) splice boxes,
- (k) surface location markers,
- (l) tracks,
- (m) tunnels,
- (n) valves,
- (o) vaults,
- (p) wires, or
- (q) other appurtenances or property.

(13) “Includes” or “including” means by way of illustration and not by way of limitation.

(14) “Landscaped Areas” mean any planted area, planter bed, median, or other space containing plant material, mulch, or synthetic turf.

(15) “Pavement Marking” means any kind of device or material that is used on a road surface to convey official information to the traveling public.

(16) “Pavement Type” means a reference to the materials from which the roadbed is constructed, including

- (a) flexible (asphalt),
- (b) ridged (concrete), and
- (c) composite (concrete base with asphalt riding surface).

(17) “Performance Security” means any one or a combination of

- (a) a performance bond,
- (b) an irrevocable letter of credit,
- (c) or a cash deposit.

(18) “Person” means:

- (a) an individual;
- (b) a receiver, trustee, guardian, personal representative, fiduciary, or representative of any kind; and
- (c) a partnership, firm, association, corporation, or other entity of any kind.
- (d) includes, except as otherwise specifically provided, a governmental entity or an instrumentality or unit of a governmental entity.

(19) “Primary Street” means a street identified as an arterial per the FHWA roadway classification system map found at BaltimoreCity.gov/Transportation.

(20) “Public Way” means

- (a) the entire area within the boundary lines of any public street, alley, sidewalk, footway, or other right-of-way, whether acquired by purchase, grant, dedication, or otherwise, and
- (b) is also known as Right-of-Way.

(21) “Right-of-Way Permit” or “ROW Permit” means

- (a) any permit, including a Street-cuts permit, issued by the Department for the temporary use of the public way, but
- (b) does not include the grant of a minor privilege.

(22) “ROW” means Right-of-Way, and has the same meaning as Public Way.

(23) “Separate offense” means each day that a violation continues.

(24) “Stop work order” means the issuance by the Department of an administrative order to cease work at an excavation site as a result of a violation of City code, a rule or regulation adopted under the City code, or a condition of the permit until the violation is abated.

(25) “Street-cuts permit” means any permit required by or issued under subtitle 15, of Article 26 of the Baltimore City Code.

(26) “TCP” means Traffic Control Plan.

(27) “TMC” means DOT Transportation Management Center.

(28) “Traffic Control Channelization Device” means a device used to

(a) warn roadway users of conditions created by work activities in or near the roadway, and

(b) to guide roadway users.

(29) “Unsafe condition” means an unsatisfactory physical condition existing at a Street-cuts location in the public way that may result in injury, death, or property damage if not corrected.

(30) “Utility” means any person that owns or operates facilities used to provide electrical, gas, steam, water, sewer, telecommunications, information, video, or other services to customers.]

(1) “ADA” means the federal Americans with Disabilities Act.

(2) *Bicycle Facility.*

(a) *“Bicycle facility” means infrastructure to accommodate or encourage bicycling.*

(b) *“Bicycle facility” includes a:*

(i) *Bike lane;*

(ii) *Bike parking facility;*

(iii) *Storage facility; or*

(iv) Shared roadway specifically designated for bicycle use.

(3) “Blanket permit” means an authorization that allows a person to undertake an action related to a street cut in the right-of-way without first applying for a street-cut permit for that location.

(4) “Book of Standards” means the Baltimore City Department of Transportation Book of Standards, which is incorporated by reference into this title.

(5) “Crosswalk” means a pedestrian crossing delineated by:

(a) A pavement marking; or

(b) Signage.

(6) “Decorative surface” means a non-functional, ADA-compliant element installed to aesthetically enhance or otherwise embellish a right-of-way.

(7) “Demarcation materials” means a warning surface treatment applied to an affected roadway, including a:

(a) Flex post;

(b) Monolithic curb; or

(c) Vertical barrier.

(8) “Department” means the Baltimore City Department of Transportation.

(9) “Directional boring” means a trenchless method of installing underground conduit and facilities with minimal impact along a prescribed underground path.

(10) “Director” means the Director of Transportation or the Director’s designee.

(11) “Duration” means the time during which an activity required by a street cut occurs.

(12) “Emergency” means a situation that arises as the result of an unforeseen event in which excavation is needed to abate imminent potential danger to life, health, or property.

(13) “Excavation” has the meaning stated in City Code Article 26, §15-1(d).

(14) Facility.

(a) “Facility” means utility infrastructure used for the provision of services.

(b) “Facility” includes infrastructure for the transportation of:

(i) Water;

(ii) Energy; and

(iii) Telecommunications.

(15) “Landscaped area” means an outdoor space improved with living vegetation or synthetic material designed to be visually appealing.

(16) “Pavement marking” means a device or material that is used on a road to demarcate lanes and conduct traffic.

(17) “Pavement type” means a reference to the material from which a road is constructed, including:

(a) Flexible material;

(b) Rigid material; or

(c) Composite material.

(18) “Performance security” means a:

(a) A performance bond;

(b) An irrevocable letter of credit;

(c) A cash deposit; or

(d) A combination of the items noted in §B(18)(a)-(c) of this Regulation.

(19) Person.

(a) “Person” has the meaning stated in City Code General Provisions Article, §1-107.

(b) “Person” includes a government entity that performs work on the right-of-way.

(20) “Primary street” means an arterial road as defined by the Department.

(21) “PROWAG” means the Federal Public Rights-of-Way Accessibility Guidelines.

(22) Right-of-Way (ROW).

(a) “Right-of-way” means an area intended to facilitate the movement of pedestrians that falls within the boundary lines of a public:

(i) Street, including a curb;

(ii) Alley;

(iii) Sidewalk;

(iv) Footway; or

(v) Property otherwise owned or controlled by the City of Baltimore.

(b) “Right-of-way” includes a public way as it is referred to in Article 31 of the Baltimore City Code.

(23) “Right-of-Way (ROW) permit” means a permit, including a street-cut permit, issued by the Department that allows temporary use of the public right-of-way to perform work related to facilities.

(24) “Separate offense” means each day that a violation continues.

(25) “Stop work order” means the issuance of an administrative order by the Department to cease work at an excavation site due to a violation of:

(a) The Baltimore City Code;

(b) A regulation adopted under the Code of Baltimore Regulations Annotated; or

(c) A condition of the permit until the violation is abated.

(26) “Street cut” means work which involves excavating a road.

(27) “Street-cuts permit” means a permit required by or issued under subtitle 15, of Article 26 of the Baltimore City Code.

(28) “Traffic Control Plan (TCP)” means an arrangement intended to preserve safe pedestrian and vehicular traffic to the greatest extent possible for the duration of work in a road.

(29) “TMC” means the Department’s Transportation Management Center.

(30) “Traffic control channelization device” means a device used to:

(a) Warn roadway users of conditions created by work activities in or near the road; and

(b) Guide roadway users for the duration of the work.

(31) “Unsafe condition” means an unsatisfactory physical condition existing at a street cut location that has the potential to result in injury, death, or property damage if not corrected.

(32) “Utility” means a person that owns or operates facilities used to provide a transmittable service to customers, including:

(a) Electrical service;

(b) Gas service;

(c) Water service;

- (d) Sewer service, including stormwater drainage; or*
- (e) Telecommunication networks.*

.03 Exceptions to Street-cuts Permits

A. – B. *(text unchanged)*

.04 Applications for a Street-cuts Permit.

A. – E. *(text unchanged)*

.05 Issuance of a Street-cuts Permit.

A. – E. *(text unchanged)*

.06 Performance Schedule and Standards.

A. – E. *(text unchanged)*

.07 Pavement Repairs and Restoration.

A. – F. *(text unchanged)*

G. *Crosswalks.*

In executing a street cut that disturbs a crosswalk, a person shall ensure that:

(1) The crosswalk is restored in accordance with the “Continental Crosswalk” style standards outlined in the Book of Standards;

(2) Notwithstanding the provisions of §G(1) of this regulation, the crosswalk is restored with a decorative surface that:

(a) Matches the characteristics of a preexisting decorative surface; and

(b) Is in accordance with standards provided by the Department when applicable;

(3) Each portion of a disturbed crosswalk is restored, including a portion of a disturbed crosswalk that is:

(a) Faded;

(b) Missing; or

(c) Otherwise noncompliant with an expected standard.

(4) The crosswalk is restored from curb to curb, unless the undisturbed portion of the crosswalk is:

(a) Compliant with the Book of Standards; and

(b) In good condition, meaning it is:

(i) In new or like-new condition;

(ii) Free of fading;

(iii) Free of peeling; and

(iv) Not otherwise defective in a way that reduces its visibility;

(5) Notwithstanding the provisions of §G(4) of this regulation, the crosswalk is restored from curb to curb when trenching is done lengthwise through the crosswalk; and

(6) When required by the Department to resurface an intersection in its entirety, each abutting crosswalk is restored as required by §G(4) of this regulation.

TITLE 14
DEPARTMENT OF TRANSPORTATION
Subtitle 02 DOCKLESS VEHICLES
14.02.01 GENERAL PROVISIONS

Authority: Baltimore City Code Article 31, § 38-3

Notice of Proposed Action

The Director of the Department of Transportation proposes to Amend Regulations **.08, .10, .11, .15, .17, and .23** under **COBRA 14.02.01**.

Statement of Purpose

The purpose of this action is to:

- (1) Require operators make 20-35% of their vehicle fleet e-bikes;
- (2) Clarify what is evaluated for a requested vehicle cap increase;
- (3) Clarify what is expected for identification stickers on vehicles;
- (4) Allow for fleet cap reductions of 250 scooters if deployment or utilization goals are not met;
- (5) Clarify fees for seized vehicles; and
- (6) Increase the security bond amount from \$10,000 to \$40,000.

Changes were initiated in accordance with Art. 31, § 38-3.

Opportunity for Public Comment

Comments may be sent to Tyler H Smith, Dockless Vehicle Program Manager, Sustainable Transportation, 417 E Fayette Street, 7th floor, or by phone to (667) 203-3247, or by email to tyler.smith@baltimorecity.gov within 30 days of the date of publication of this Register.

VERONICA P. MCBETH DIRECTOR,
DEPARTMENT OF TRANSPORTATION

Title 14 DEPARTMENT OF TRANSPORTATION

Subtitle 01 *{RESERVED}*

Subtitle 02 DOCKLESS VEHICLES

CHAPTER 01 GENERAL PROVISIONS

- 14.02.01.01 Scope.
- 14.02.01.02 Definitions.
- 14.02.01.03 Permits – Applications.
- 14.02.01.04 Permits – Fees.
- 14.02.01.05 Permits – Issuance.
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14.02.01.26 Citations.

Subtitle 02 DOCKLESS VEHICLES

CHAPTER 01 GENERAL PROVISIONS

Authority: Baltimore City Code Article 31, § 38-3

14.02.01.01

.01 Scope.

(text unchanged)

.02 Definitions.

A. *(text unchanged)*

B. Terms Defined.

(1) Adaptive Dockless Vehicle.

(a) “Adaptive dockless vehicle” means a dockless vehicle that is accessible to people with a physical disability.

(b) “Adaptive dockless vehicle” includes a motorized or non-motorized:

(i) Recumbent bicycle;

(ii) Tricycle; and

(iii) Hand cycle.

(2) Alternative Deployment Location.

(a) “Alternative deployment location” means an area other than a public street.

(b) “Alternative deployment location” includes:

(i) A park;

(ii) A plaza;

(iii) A parking lot;

(iv) Private property; or

(v) A transit station.

(3) Applicant.

(a) “Applicant” means a person applying for an initial dockless vehicle permit.

(b) “Applicant” does not include a permit holder applying for the renewal of a dockless vehicle permit.

(4) “Application Programming Interface endpoint (API)” means a protocol that enables a software application to:

(a) Communicate with another platform; or

(b) Exchange data.

(5) “Beta endpoint” means an API endpoint that has been officially released in a testing mode by its regulatory authority but not formally adopted.

(6) “Block face” means one side of a street between the intersection of two other streets, excluding an alleyway.

(7) “Community event” means an event held by:

(a) A community organization as recognized by the City’s Online Community Association Directory; or

(b) Another organization as deemed appropriate by the Director.

(8) “Compliance score” means a calculation of a permit holder’s compliance with the provisions of this chapter.

(9) “CPSC” means the U.S. Consumer Product Safety Commission.

(10) “Department” means the Baltimore City Department of Transportation.

(11) “Deployment” means the location where a dockless vehicle is placed by a permit holder when it is made available for rent.

(12) “Deployment district” means a geographic area designated in the Department’s MDS Policy API for tracking the distribution of dockless vehicles.

(13) “Director” means the Director of the Department of Transportation.

(14) “Dockless corral” means a geographic location designated by the Department where a dockless vehicle may be parked.

(15) “Dockless vehicle” has the meaning stated in City Code Article 31, § 38-1(b).

(16) “E-bike” has the meaning stated in City Code Article 31, § 38-1(d).

(17) “E-scooter” has the meaning stated in City Code Article 31, § 38-1(e).

(18) “Equitable access” means a process of making dockless vehicles available to the public by removing barriers to use including:

- (a) Geography;
- (b) Income;
- (c) Banking status; or
- (d) Inclusion in a federally protected class.

(19) “Equity zone” means a geographic location where a dockless vehicle is deployed for equitable access as designated in the official document provided by the Department to a permit holder.

(20) “Fleet” means the total number of dockless vehicles operated by a permit holder in Baltimore City, regardless of whether they are available for rent.

(21) “Genetic information” means genetic markers related to a person’s medical history, including the manifestation of a:

- (a) Disease; or
- (b) Disorder.

(22) “Geo-fencing” means a location-based service that uses GPS or cellular data to identify when a mobile device or dockless vehicle enters or exits a virtual geographic boundary.

(23) “GitHub” means a code hosting platform.

(24) “Low-income population” means a person whose family income is at or below 150 percent of the poverty line

(25) “MDS” means Mobility Data Specification.

(26) “MDS Policy API” means the Open Mobility Foundation standards and code available on GitHub for secure mobility data exchange.

(27) “New permit holder” means a provider of dockless vehicles who has:

- (a) Not previously been issued a permit to operate on a public street by the Department; or
- (b) Not held a permit in the previous year.

(28) Non-deployment Request.

- (a) “Non-deployment request” means a request from a member of the public to prevent the deployment of a dockless vehicle in front of their property.
- (b) “Non-deployment request” includes a vehicle deployed by a dockless vehicle permit holder.
- (c) “Non-deployment request” does not include a vehicle parked by a user.

(29) “OMF” means Open Mobility Foundation.

(30) “Overconcentration” means the deployment of more than 25 percent of a permit holder’s fleet in a single deployment district.

(31) “Payment Card Industry Data Security Standards” means the set of guidelines designed to ensure companies that process credit card information maintain a secure environment.

(32) “Parking corral” means an area designated by the Department where a dockless vehicle may be parked.

(33) “Permit” means a dockless vehicle permit as provided in City Code Article 31, § 38-8.

(34) “Permit agreement” means a document that is entered into between the City and a permit holder that:

(a) Stipulates required insurance coverage for a permit holder to operate in Baltimore City;

(b) Stipulates that the permit holder is obligated to adhere to applicable laws and regulations to operate in Baltimore City; and

(c) Outlines procedures for the cessation of operations prior to the end of a permit.

(35) “Permit holder” means a provider of dockless vehicles who has been issued a permit by the Department to operate on a public street.

(36) “Permit year” means the period from July 1 to June 30 annually.

(37) “Person” has the meaning stated in General Provisions Article § 1-107, City Code.

(38) “Referral agency” means a government assistance program that provides services to individuals who qualify as low-income.

(39) “Remote shut down notice” means a written communication from the Department sent via e-mail to a permit holder instructing the permit holder to shut down the entirety or a portion of their fleet in Baltimore City.

(40) Seizure.

(a) “Seizure” means the act of removing a dockless vehicle in violation of this chapter from:

(i) City property; or

(ii) An area inaccessible to a permit holder.

(b) “Seizure” includes the act of:

(i) Towing;

(ii) Impoundment; and

(iii) Retrieval from a body of water.

(41) “Speed governor” means a device that ensures the motor of a dockless vehicle is incapable of traveling at a speed in excess of a mandated speed limit on level ground.

(42) “Street” has the meaning stated in General Provisions Article § 1-109, City Code.

(43) “Third-party” means a person that is not the permit holder that may access data related to the operation of dockless vehicles.

(44) “Third-party aggregator” means an organization that processes data from one or more sources for use by the City.

(45) “Towing Division” means the Baltimore City Department of Transportation’s Towing Division.

(46) “Tree pit” means an area of the street where a tree is planted.

(47) “Underserved population” means a group of people that:

(a) Has limited or no access to resources; or

(b) Is otherwise disenfranchised.

(48) “Utilization rate” means the number of trips per vehicle per day that last longer than one minute.

[(48)] (49) “Vehicle model” means a vehicle of the certain type, but with different features or appearance.

[(49)] (50) “Vehicle type” means a vehicle that meets specifications in the City’s vehicle code for that vehicle.

[(50)] (51) “Web Content Accessibility Guidelines (WCAG)” means guidelines published by the World Wide Web Consortium's Web Accessibility Initiative to make web content accessible.

.03 Permits - Applications.

A. – C. *(text unchanged)*

.04 Permits - Fees.

A. – C. *(text unchanged)*

.05 Permits - Issuance.

A. – D. *(text unchanged)*

.06 Permits - Renewal.

A. – C. *(text unchanged)*

.07 Permits - Revocation.

A. – C. *(text unchanged)*

.08 Deployment.

A. – C. *(text unchanged)*

D. Fleet proportion Requirements.

(1) In General.

A permit holder shall ensure that between 20 percent and 35 percent of their average vehicles on the ground are e-bikes.

(2) Compliance.

The Department shall:

(a) Evaluate monthly compliance per Operator beginning March 1 through November 30 based on the average number of e-bikes on ground divided by average total vehicles on ground.

(b) Notify a permit holder in violation of §D of this regulation via a compliance score notification.

(3) Exemptions.

(a) A permit holder may apply for an exemption to this section in accordance with §I of this regulation.

(b) The Dockless Vehicle Program Manager may grant an exemption to this section at their discretion.

[D.] E. Prohibitions.

(1) A permit holder may not deploy a dockless vehicle:

(a) Outside of a parking corral on a block face that contains an official parking corral designated by the Department, except as provided in §E(2) of this regulation;

(b) In a quantity greater than ten per block face, except as allowed by the Department to accommodate a special event;

(c) On a block face which contains the front entrance to a K-8 school;

- (d) In a tree pit or otherwise landscaped area;
 - (e) In front of a property with an approved non-deployment request in accordance with §F of this regulation; or
 - (f) In a location the Department has notified the permit holder that they may not deploy to, beginning 48 hours after the notification.
- (2) If a parking corral is full, a permit holder may deploy a dockless vehicle on a block face outside of the parking corral.
- (3) Unless a permit holder receives approval from the Department, a permit holder may not designate a public street in Baltimore City as a:
- (a) No parking zone;
 - (b) Reduced speed zone; or
 - (c) No ride zone.

[E.] *F. Non-Deployment Requests.*

- (1) A property owner or manager may submit a non-deployment request in writing to the Department for an area adjacent to their property.
- (2) The Department shall notify a permit holder:
- (a) Of an approved non-deployment request; and
 - (b) That an approved non-deployment request will begin 48-hours after notification.

[F.] *G. Severe Weather and Emergencies.*

- (1) If 24-hour advanced notice is provided, the Department may:
- (a) Suspend the requirements of this regulation; or
 - (b) Require the removal of:
 - (i) An entire fleet; or
 - (ii) A portion of a fleet in a defined geographic location.
- (2) The Department may require a permit holder to remove a dockless vehicle from:
- (a) An evacuation route prior to an emergency snow event; and
 - (b) A low-lying area prior to an emergency flooding event.

[G.] *H. Special Events.*

The Department may suspend the requirements of this regulation during a special event.

[H.] *I. Temporary Exemptions from Deployment Regulations.*

- (1) A permit holder may apply for a temporary exemption from the deployment requirements in this chapter.
- (2) A permit holder shall include a plan for communicating operational changes to affected users and the public within the application for temporary exemption.
- (3) The Department shall review applications for temporary exemption:
 - (a) Within 24 hours for an application based on an immediate safety concern; and
 - (b) Within five business days for other exemption requests.

[I.] *J. Alternative Deployment Locations.*

- (1) A permit holder shall obtain permission to deploy a dockless vehicle to an alternative deployment location from:
 - (a) The Department;
 - (b) A private property owner; or
 - (c) Another City agency.
- (2) A permit holder shall communicate the permission to deploy a dockless vehicle in an alternative deployment location via:
 - (a) Signage approved by the entity granting permission; or
 - (b) A mobile or web application.

.09 Equitable Dockless Vehicle Access.

A. – E. *(text unchanged)*

.10 Compliance.

A. – C. *(text unchanged)*

[D. Eligibility for Fleet Cap Increase.

To be eligible for a fleet cap increase, a permit holder shall score a minimum of 90 percent compliance for each reporting period in

(1) A deployment district; and

(2) An equity zone.]

[E.] *D. Winter Weather Compliance Exemptions.*

On days for which the Baltimore City Public School System implements a modified schedule due to inclement weather, the Department shall grant compliance exemptions for violations of:

(1) Distribution;

(2) Equity; and

(3) Five-day parking.

[F.] *E. Remote Shut Down Notice Exemptions.*

When the Department has issued a remote shutdown notice to a permit holder, the Department shall grant compliance exemptions for violations of:

(1) Distribution;

(2) Equity; and

(3) Five-day parking.

.11 Vehicle Standards.

A. *(text unchanged)*

B. Required Features – In General.

A permit holder shall ensure a dockless vehicle deployed on a public street:

(1) Weighs no more than 100 pounds;

(2) Is equipped with an operational structural feature that allows the vehicle to be stably parked upright without needing to lean on another object;

(3) Is equipped with built-in front and back lights that:

(a) Illuminate while the dockless vehicle is in use; and

(b) Are visible from a distance of at least 500 feet under normal atmospheric conditions at night;

(4) Is equipped with a bell or noise emitting device;

(5) Has tires with a diameter of at least nine inches;

(6) Has tactile identification which:

(a) Meets State requirements; and

(b) Is located on the stem near the handlebars if handlebars are present; and

(7) Has legible decals listing:

(a) The name of the permit holder displayed in a minimum of 16-point font;

(b) The following contact information for a permit holder displayed in a minimum of 16-point font:

(i) A toll-free telephone number;

(ii) An e-mail address; and

(iii) A website address; and

[(c) A unique identification number displayed in:

(i) A minimum of 48-point font; or

(ii) Font that is at least 1 inch in height.]

(8) Has a unique identification code that is:

(a) Referenceable by the Operator;

(b) Assigned to a specific vehicle; and

(c) Displayed prominently on the vehicle in:

(i) A minimum of 48-point font; or

(ii) A font that is at least 1 inch in height.

C. – E. *(text unchanged)*

.12 Vehicle Standards - Inspections and Notification.

A. – B. *(text unchanged)*

.13 Vehicle Standards – Timeline for Compliance.

A. – C. *(text unchanged)*

.14 Remote Shutdown.

A. – B. *(text unchanged)*

.15 Fleet Size.

A. – C. *(text unchanged)*

D. Fleet Increases.

(1) Each quarter, a permit holder may request a fleet increase of up to 250 vehicles in excess of the limits established in §A of this Regulation.

(2) In reviewing a fleet increase request, the Department shall assess:

(a) Performance during the period prior to the evaluation; and

(b) Projections for the subsequent quarter.

(3) The Department may:

(a) Set an overall fleet cap; [and]

(b) Revoke a fleet increase[.]; *and*

(c) Reduce an Operator's fleet cap by 250 vehicles if for a 3-month period between March and November an Operator does not:

(i) Maintain a fleetwide utilization rate of at least 1.5; or

(ii) Deploy at least 75 percent of their fleet cap as measured by average vehicles on the ground.

.16 Parking and Operation.

A. – H. *(text unchanged)*

.17 Seizure and Recovery.

A. – C. *(text unchanged)*

D. After the first 48 hours from the initial seizure date, the Department may charge a permit holder [\$15.00 for each 24-hour period for each group of]:

(1) [Up to five e-scooters] *Three dollars per e-scooter per day; or*

(2) [Up to three bicycles or e-bicycles] *Five dollars per bicycle or e-bicycle per day.*

E. *(text unchanged)*

.18 User Education.

A. – D. *(text unchanged)*

.19 Special Events.

A. – B. *(text unchanged)*

.20 Pricing.

A. – B. *(text unchanged)*

.21 Advertising and User Engagement.

A. – B. *(text unchanged)*

.22 Data and Reporting.

A. – D. *(text unchanged)*

.23 Security Bond.

A. Security Bond.

(1) A permit holder shall provide a security for performance in the amount of [\$10,000] *\$40,000* to the Department.

(2) A permit holder shall ensure the security is in the form of:

(a) A performance bond;

(b) A refundable bond; or

(c) Another security acceptable to the City.

B. *(text unchanged)*

.24 Procedures for Claims Against Security Bond.

A. – D. *(text unchanged)*

.25 Insurance.

A. – D. *(text unchanged)*

.26 Citations.

A. – D. *(text unchanged)*

Administrative History:

- R&R establish and effective August 1, 2019
- R&R revised and effective July 1, 2021
- R&R revised to be effective July 1, 2022
- R&R revised to be effective July 1, 2023
- R&R revised, effective June 18, 2024
- R&R revised, effective June 18, 2025